

OOH Release Order - Display

MOMS Outdoor Media Solutions Pvt Ltd
GST Tin No : 19AAECM4369H2Z4
12th floor, 12G/1, Everest House, 46c Chowringhee Road Kolkata 700071



Vendor : Sudha Creative
GST Tin No : 19AHRPT4740Q1Z6
Address : Mahanandapally, Jhaljhalia, English Bazar, Malda 732102

Release Order No: RO/25010149/WB/20 - (49,052)
Dated : 05/05/2025
Ref -Job No : 25010149

As per discussion and mutually agreed terms, we release an order for the Display/space of advertisement on behalf of our client "UTKARSH INDIA LIMITED" for their brand "UTKARSH"

S.No	Media Vehicle	Location	Traffic	Type FL/ BL/NL	Qty	Size (W*H)	Total SqFt	Start Date	End Date	Amount
Town : MALDA										
1	Billboard	Gazole Mayna Bus Stand (New)		NL	1	20.00 * 20.00	400	01/04/2025	23/04/2025	3,910.00
2	Billboard	Malda 420 More, Sukanta More (New)		FL	1	30.00 * 25.00	750	01/04/2025	30/04/2025	22,000.00
3	Billboard	Malda Rabindra Bhavan More (New)		NL	1	20.00 * 20.00	400	01/04/2025	30/04/2025	5,500.00
4	Unipole	Sahapur Flyover (New)		FL	2	30.00 * 10.00 +..	600	01/04/2025	30/04/2025	28,000.00
Total Sites 4					5		2150			59,410.00

Total Amount INR 59,410.00

Commencement of contract shall be deemed effective from the date of display or contract date whichever is later.

Acceptance of this RO indicates agreement to the RO terms and Conditions mentioned in attached Annexure, a signed copy of this RO and Annexure needs to be attached with the invoice.

Remarks:

For MOMS Outdoor Media Solutions Pvt Ltd

Acknowledgement by Sudha Creative

Annexure

Terms and Conditions:

- 1) Release Order (RO) for OOH Advertisement Display Space Charges as specified therein and for the period specified against each of them. The Display period though indicated will actually commence from the date on which the Display is started and will run for the period specified in the Release Order from that date.
- 2) In case the Display is not done for the entire contracted period, a penalty equal to the Display charges for the rest of the contracted period or 3 months Net Display charges, whichever is lower, will be believed.
- 3) Execution of Vinyl Mounting should be completed within 24 hours of receipt of the same and painting /printing on Display Media should be completed within 48 hours of receipt of the artwork/design. In case of delay in implementation, beyond the said periods, there will be a penalty of day's Display charges for every further day of delay.
- 4) Proof of display to be submitted within 2 days from start and end of the campaign. Campaign of 20 days or more - one set of interim photos required.
- 5) Any extension / cancellation if communicated with 4 days prior notice of commencement / renewal of contract, it has to be accepted.
- 6) In case of execution being not proper resulting in poor quality of Vinyl Mounting/Painting, the same should be remounted /painted free of cost.
- 7) Printer/ Fabricator should ensure proper quality and specifications as in the RO, we reserve the right to reject the printed vinyl/ Fabricated item. In which case the printer/fabricator has to redo the same free of cost.
- 8) The Outdoor Media for which this RO is issued should be maintained by the Supplier in good condition throughout the period specified and should not be defaced partly or in full during the period. If found to be so defaced on verification, the same should be set right within 24 hours of such information being duly conveyed to the Supplier, failing which the Display Charges for the defaced period will not be paid for. In case of the loss or theft of vinyl, the cost of the vinyl plus mounting charges will be deducted from payment.
- 9) The value of this RO is inclusive of all charges, except GST.
- 10) If any Outdoor Media unit is required to be illuminated or backlit as stated in the RO and at any time it is found to be not so or is only partially illuminated or partially backlit, and the Supplier informed of it, the same shall be set right by the Supplier within one day failing which Display Charges for the period for which it is not fully illuminated or backlit will not be paid for.
- 11) The Supplier would be paid proportionately in the event of deduction due to dispute / deficiency.
- 12) The Supplier shall obtain and comply with all legal permissions, rights, licences, authority required under the law in force and shall ensure timely and full payment of license fees till the end date of display tenure to the municipal authorities and other governmental authorities as applicable.
- 13) The Supplier hereby agrees to indemnify MOMS Outdoor Media Solutions Pvt Ltd and hold them harmless at all times against any claims made by any person in the eventuality of any of the Outdoor Media that have been contracted for, in any manner collapsing and causing damage to any property or person or resulting in loss of life of any person.
- 14) The Supplier shall ensure the safety of Artists/Workers involved in preparing/erecting the Outdoor Media, etc. and keep MOMS Outdoor Media Solutions Pvt Ltd indemnified against any claims made by any person or any injury, loss of life or damage to property.
- 15) The Supplier shall own the sole marketing rights of the ordered sites and ensure that the Outdoor Media used for advertising as specified in the RO are legal and do not violate any law and that all taxes and other dues payable in respect thereof are fully paid without any delay. MOMS Outdoor Media Solutions Pvt Ltd may in special circumstances seek for production of necessary approvals/licenses and in such a case/s the supplier shall furnish the same to MOMS Outdoor Media Solutions Pvt Ltd.
- 16) The Supplier shall maintain all information/data relating the client or MOMS Outdoor Media Solutions Pvt Ltd confidential and shall not disclose the same to any third parties without taking prior permission in writing from MOMS Outdoor Media Solutions Pvt Ltd.
- 17) Any change in the ownership pattern of the Supplier must be informed to MOMS Outdoor Media Solutions Pvt Ltd immediately. Also any change in marketing/license rights of the ordered sites during the tenure of service delivery shall be informed to MOMS Outdoor Media Solutions Pvt Ltd immediately.
- 18) The Supplier shall keep MOMS Outdoor Media Solutions Pvt Ltd and their Clients fully indemnified against any claim, damage or loss suffered by them as a result of any Outdoor Media unit violating any law or due to non-payment of taxes and other dues in respect thereof.
- 19) MOMS Outdoor Media Solutions Pvt Ltd reserves the right to discontinue or cancel the booking midway of the Display period, if the Client/Advertising Agency of the Client requires such cancellation. Agency also reserves the right to cancel the printing RO before start of the Printing..The first right of the continuation/refusal rests with MOMS Outdoor Media Solutions Pvt Ltd
- 20) The Above terms and conditions are as per applicability to respective supplier RO.
- 21) This PO once issued overrides and nullifies all previous emails and/or letters that may be issued in this connection.

Compliance with GST laws

- 1) Supplier shall be liable to pay GST on all or any amounts received or receivable including advances paid to them as per the GST laws
- 2) Supplier shall raise a valid Invoice and file GST returns as prescribed as per the time limit prescribed mentioning all appropriate and relevant information as per GSTN platform

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- 2) Supplier shall raise a valid Invoice and file GST returns as prescribed as per the time limit prescribed mentioning all appropriate and relevant information as per GSTN platform
- 3) In the event the Input Tax Credit of GST is not granted or denied to the Agency under its appropriate GST registration by the authorities for non-payment of taxes charged to the Agency or for any non-compliance (including but not limited to non-filing of information, non-filing of returns, non-payment of appropriate GST to the appropriate Government/incorrect submission of information on the GSTN platform by the supplier.
- 4) Agency gets the credit in the subsequent month, else;
- 5) Agency shall be entitled to recover this amount from the Suppliers bills
- 6) Agency shall be eligible to hold back any amount to compensate such loss
- 7) Cancel the RO and hold back all the payments related to such RO
- 8) Indemnified against any loss or damage directly or indirectly suffered by the Agency
- 9) GST Compliance rating (GCR):
- 10) Supplier shall ensure that the GCR shall not fall below prescribed criteria, prescribed by the Government from time to time. Further in case the supplier fails to maintain the GCR, Agency shall have the right to terminate all future dealings with the Supplier and blacklist the same in their database.

Billing Instructions:

1. Supplier to raise Separate Bills for each Calendar month, unless instructed otherwise.
2. Supplier to raise Bills from their registered Branch to our registered branch (mentioning the address and the GSTIN) as mentioned in RO.
3. Supplier to mention our PAN NO: AAECM4369H and GSTIN 19AAECM4369H2Z4 in their bills.
4. Goods and Service Tax (GST) shall be paid extra as applicable,
5. Supplier to mention their GSTIN and PAN No. on the bill.
6. Supplier to raise bills attaching a signed copy of RO and supporting documents including delivery challan/Courier receipt for Vinyl supply, wherever applicable
7. Supplier to submit Bills with all complete documents within 7 days from the last day of campaign or issuance of RO whichever is later.
8. Payments will be made within 90 days from the date of receipt of Complete bill by MOMS Outdoor Media Solutions Pvt Ltd.
9. Payments will be made in the name of "Sudha Creative" through A/c payee cheque or RTGS or Demand Draft only.